



GRIMES COUNTY COMMISSIONERS COURT

OFFICIAL MINUTES — WEDNESDAY, SEPTEMBER 16, 2026

The Grimes County Commissioners Court met on Wednesday, September 16, 2026, at 9:00 A.M.

Members Present: County Judge Joe Fauth, Commissioner Chad Mallett, Commissioner David Tullos, Commissioner Michael Raska, Commissioner Phillip Cox.

Call to Order

County Judge Joe Fauth called the regular meeting of Commissioners Court of Grimes County to order on Wednesday, September 16, 2026, at 9:00 a.m. at 270 FM 149 West, Anderson, Texas, and reminded attendees that the meeting would be recorded.

Invocation

Pastor Henry Sanders delivered the invocation, expressing gratitude for the day and asking for divine guidance over the court's decisions. Sanders offered prayers for protection of law enforcement and first responders, for the county's school systems and their superintendents, and for the families of the community. He also prayed for the safety of military personnel overseas and for wisdom among national leaders, and asked that the commissioners be guided to make decisions that would bring unity to the community.

Pledge of Allegiance to the U.S. Flag

Pledge of Allegiance to the Texas Flag

Public Comments

We look forward to hearing from the citizens of Grimes County. If you wish to make public comments you will need to submit a Public Participation Form prior to the start of the meeting and give it to the County Clerk. Public comments will be limited to 2 minutes per person.

Joseph Reznicek addressed the Commissioners Court with budget concerns, urging the court to postpone new construction projects including the jail and annex until sufficient funds were available, arguing that people and services should take priority over building commitments. He recommended using savings from delayed projects to increase county employee wages competitively, noting that the cost of recruiting and training replacements for employees who leave for better-paying positions would exceed the current budget by approximately \$1.9 million. Reznicek also called for comparable pay with state law enforcement agencies to retain experienced staff and attract new deputies and constables needed for anticipated county growth. He requested allocation of funds for two additional ambulances with crews and equipment, support for volunteer emergency services responders, distribution of funds to volunteer fire departments for life-saving supplies and maintenance, adequate resources for road and bridge repairs and assessments, and a minimum of two inspection technician positions for the county engineer's office to manage the increasing volume of permits.

Consent Agenda Items

1. **Consider and take action to approve the Treasurer's List of Claims and Bills.**

2. **Consider and take action to approve payroll.**
3. **Consider and take action to approve Budget Amendments and/or Line-Item Transfers.**

Action: **Motion by Commissioner Chad Mallett to Approve consent agenda items: the Treasurer's List of Claims and Bills, payroll, and Budget Amendments and/or Line-Item Transfers. Seconded by Commissioner Michael Raska. Carried.**

Presentation of Monthly Departmental Reports:

4. **Elections, Veterans Services, Emergency Management Services — Elections, Veterans Services, Emergency Management Services**

Veterans Services Coordinator Jay Lafferty reported on two months of activity. In July, he recorded eighteen office contacts, thirty-six phone contacts, and seven email contacts, noting that fewer people visited during hot weather and preferring to call instead. Three new claims were started and one existing claim was updated. Lafferty's banner was displayed at a gun show where it was seen by over eight hundred people, and he thanked maintenance for assisting with events to increase visibility of veterans services. In August, he had thirty-two phone contacts, six office contacts, and five email contacts. Lafferty completed a required artificial intelligence course for county employees and processed a claim for submission. Three representatives from the Texas Veterans Commission visited to explain their reorganized operations and discuss issues affecting veteran service officers and the services provided by the Texas Veterans Commission, which approves all of Lafferty's work. County Judge Joe Fauth asked whether the visitors discussed any legislative priorities to raise with state representatives, and Lafferty responded that increased staffing at the Texas Veterans Commission would be helpful, as that agency consistently operates with insufficient personnel. EMC/Fire Marshal Dione Bumpous reported that since the burn ban was placed on August 17, the department responded to two significant incidents: an RV vehicle fire that sparked neighboring properties, prompting Red Cross assistance during a heat advisory, and a booth fire at the Renn Fair, for which she thanked Montgomery County Fire Marshal's Office, the ATF, and the Grimes County Sheriff's Office for their investigation assistance. Bumpous stated that the drought index stood at seven hundred fourteen, rising approximately one hundred points since the ban was initiated, and she recommended maintaining the burn ban in place. The department completed two operational permits involving fire suppression and alarm system inspections. Bumpous reported that Grimes County received approval for individual assistance related to July 2026 flooding and that public assistance had been submitted alongside two other counties previously omitted from the list. Work on emergency indexes and emergency support functions continues, with completion required by December of the next year.

Presentation of Monthly Commissioners Court Liaison Reports:

5. **County Judge: Maintenance, HR, IT, Emergency Management, Road Department, Veterans Services, Elections, Navasota Grimes County Chamber of Commerce; — Joe Fauth III**

Commissioner Pct. 2: Animal Shelter, Historical Commission, Navasota Grimes County Chamber of Commerce, Bluebonnet Groundwater Conservation District Board; — David Tullos

Commissioner Pct. 3: 911 Addressing/Permits/Environmental/Solid Waste, BVCOG

Solid Waste Advisory Committee; — Michael Raska

Commissioner Pct. 4: Fairgrounds, Hospital Contracts, EMS Services, Health Resource Center — Phillip Cox

Commissioner Phillip Cox reported that ambulance services had been quiet recently and noted an AgriLife feral hog program scheduled at the Fairgrounds, with details available on the AgriLife website.

6. Presentation of community outreach donations from Kinder Morgan; Greg Neal presenting. — Greg Neal, Grimes County Judge

County Judge Joe Fauth stated that due to a scheduling conflict, no one could appear in Court this morning. This agenda item will be rescheduled at a later date.

7. Consider and take action to renew County Choice Silver retiree insurance rate for FY 2027. — Atina Adair, Grimes County Human Resources

Human Resource Director Atina Adair presented the County Choice Silver retiree insurance plan renewal for fiscal year 2027, reporting that rates will remain unchanged at \$298.51 per month. She requested approval and signature from the court.

Action: **Motion by Commissioner Chad Mallett to Approve renewal of the County Choice Silver retiree insurance rate for FY 2027 at the current rate of \$298.51. Seconded by Commissioner Michael Raska. Carried.**

8. Discuss and take action to approve the allocation of the County Court at Law storage space in the maintenance building to the IT Department, removing the separation wall between the two rooms, as approved by Judge McLain. — Gregg Cannon, Grimes County IT

County Judge Joe Fauth introduced the item concerning allocation of county court storage space and maintenance building to the IT department, with removal of the separation wall between rooms as previously approved. IT Andrew Duncan confirmed he was present on behalf of Gregg Cannon to discuss the request.

IT Andrew Duncan reported that the County Court at Law storage space in the maintenance building has been vacant of county court items for some time. He explained that the IT Department needs additional room to accommodate equipment purchased for projects not yet started, items awaiting auction, and new purchases anticipated from the upcoming budget. Andrew Duncan noted that Greg had approached Judge McLain to request use of the space, and Judge McLain approved the allocation. Andrew Duncan indicated that Greg's preference was to have a wall removed or a door installed to allow direct passage between the two rooms rather than having staff exit and re-enter the building. County Judge Joe Fauth confirmed that Judge McLain was in full agreement with this arrangement. County Auditor Jessi Murphy asked whether the court would retain the existing door or remove the wall, and what the cost would be. County Judge Joe Fauth indicated that the court was approving only the allocation of space at this time, with Facilities Director Rodney Floyd to provide cost estimates later for either installing a door or removing the wall. County Attorney Megan Barcak clarified that the item before the court concerned allocation of the space only, not approval of the wall removal itself.

Action: **Motion by County Judge Joe Fauth to Approve the allocation of the County Court at Law storage space in the maintenance building to the IT Department. Seconded by Commissioner Michael Raska. Carried.**

9. Discuss and take action to approve the Grimes County Jail's annual Southern Health

Partners Contract for FY27. — Martha Smith, Grimes County Sheriff's Office

Business Mgr GSO Michelle Weeks presented the Grimes County Jail's annual Southern Health Partners Contract for fiscal year 2027. She reported that the contract had been restructured to cover 100 inmates on a regular basis as the baseline, which increased the monthly base payment to thirteen thousand three hundred and seventy-eight dollars and forty-seven cents. Weeks explained that this adjustment was beneficial because the jail regularly houses approximately 100 inmates daily, bringing the per-inmate cost down to about seventy-five dollars per day compared to the alternative per-diem rate of one dollar seventy-five per inmate. She further noted that after consulting with Danya, the numbers indicated a need to increase the budget by four thousand five hundred dollars to ensure the jail would not need to request additional funds mid-year. County Judge Joe Fauth clarified whether the funding would come from existing allocations in the 2027 budget or represent a shortfall, and Weeks confirmed the money was likely already budgeted. County Auditor Jessi Murphy indicated the budget adjustment would be addressed during the subsequent budget adoption agenda item.

Action: **Motion by County Judge Joe Fauth to Approve the Grimes County Jail's annual Southern Health Partners contract for FY 2027. Seconded by Commissioner Chad Mallett. Carried.**

See Exhibit A.

10. Consider and take action to approve the Union Grove Baptist Church-Whitehall as an Election Day Polling Location. — Rachel Walker, Grimes County Elections

Elections Administrator Rachel Walker presented the Union Grove Baptist Church in Whitehall as a replacement polling location for the Whitehall Community Center, which had contractual issues. The church is located on Highway 362, is well known in the community, and offers ample parking with proper handicap accessibility and concrete surfaces—all factors that address audit findings regarding the previous location. The facility features a fellowship hall separate from the sanctuary where voting would take place, multiple bathrooms, and adequate space for entry and exit. Walker met with the church director, Sue Wimberly, who brought the proposal before the church body, and it was unanimously approved. The church raised initial concerns about candidate signs but understood after Walker explained that polling locations must remain neutral. The church did not request a rental fee and expressed willingness to serve the community. Whitehall typically draws close to two hundred voters on election day, making an active polling location important for the county. Walker noted that the county had gone without a location in Whitehall for a couple of recent elections and sought court approval to use Union Grove Baptist Church for the November election.

Action: **Motion by Commissioner Michael Raska to Approve the Union Grove Baptist Church-Whitehall as an Election Day Polling Location. Seconded by Commissioner Phillip Cox. Carried.**

11. Road Department Report. — Jon Steiber, Grimes County Engineer

County Engineer Jon Steiber presented the monthly Road Department report covering August activities and ongoing projects. He briefed the court on bridge work, noting that the department has 74 bridges in its inventory, of which 30 have been identified as needing replacement. The department is pursuing a strategy of completing three bridge designs and three constructions per year, and is currently re-decking several bridges with rotted wood decks—difficult work being performed in the heat. Steiber reported that the Oak Lane Bridge in Precinct 1 is being replaced with an improved culvert crossing that increases capacity and surface area underneath. Road

resurfacing projects include chip sealing the remainder of County Road 175 beginning the following week, with subsequent work planned on roads 115, 242, and 306, pending discussion of a later agenda item. Steiber also reported on development training, subdivision compliance, and solid waste initiatives. Weekly development training continues on Tuesdays, and the department is working with subdivisions to ensure septic system maintenance contracts are current; recent outreach efforts placing red flags at noncompliant systems have been successful, with 90 of 120 flagged properties coming into compliance within a week. A solid waste cleanup event held September 5 went well. The tire trailer discussed at previous meetings will open for business the following day in Stoneham, equipped with ADA-compliant access, charging three dollars per tire up to 24.5 inches in diameter and ten dollars for larger tires. Steiber expects the fees to cover operating costs and break even on the effort. Commissioner David Tullos asked about County Road 406 bridge closure over the weekend; Steiber explained that the bridge was undergoing redeck work due to severe wood rot and expected it to reopen during the week, noting the bridge remains high priority for complete replacement within three to four years.

12. Discuss and take action to award the Solid Waste Services contract with effective date October 1, 2026. — Jon Steiber, Grimes County Engineer

County Engineer Jon Steiber reported that the county went out for bids for compactor rentals and trash hauling services at its five solid waste sites and the sheriff's office. The low and best bids were from BVR for hauling and America for compactor rentals, with annual operating costs of \$174,900 for 231 total hauls, representing a 35% increase from the previous five-year contract. County Judge Joe Fauth noted that user fees have historically covered about one-third of the operation's costs and confirmed that the recommendation remained to maintain the dollar-per-bag fee structure.

Action: Motion by Commissioner Michael Raska to Award the Solid Waste Services contract with effective date October 1, 2026 to BVR for hauling and Compactor Rentals of America for compactor rental. Seconded by Commissioner Chad Mallett. Carried.

See Exhibit B.

See Exhibit C.

13. Discuss and take action to transfer FY26 project funds to FY27 budget. — Jon Steiber, Grimes County Engineer

County Engineer Jon Steiber presented a request to transfer remaining fiscal year 2026 project funds to the fiscal year 2027 budget to allow work to continue on existing projects without pulling from next year's allocations. The total transfer amount was approximately \$750,000, with Steiber providing a breakdown of the line items: contract hauling at \$200,000, road materials at \$500,000, and special projects at \$50,000. County Auditor Jessi Murphy requested confirmation that these amounts represented all remaining balances after September invoices would be processed and verified the line item allocations before the budget adoption. Steiber also presented a second component of the request, explaining that bridge project balances totaling approximately \$130,000 across contract services and bridge materials should be transferred to fund the county's portion of the County Road 409 bridge project rather than returning those funds to the general fund balance. County Judge Joe Fauth confirmed with the court that the funds represented work already allocated in the current year that would not be completed, requiring only a transfer to the next fiscal year. Steiber noted that weather delays during a wet spring and early summer, combined with recovery efforts from a recent disaster event, had slowed progress on multiple projects, though he indicated the department would accelerate work on several seal

coating and base stabilization projects still scheduled for the current year. Murphy requested that Steiber coordinate with her office to finalize the exact figures before the budget discussion.

Action: **Motion by Commissioner Chad Mallett to Approve the transfer of FY 2026 project funds (contract hauling, road materials, and special projects) to the FY 2027 budget, with exact line-item amounts to be reconciled with the auditor. Seconded by Commissioner David Tullos. Carried.**

14. Discuss and take action to award the GLO MIT-MOD Tawneyberry/Live Oak road project to Eubank Excavation, LLC and discuss and take action to fund the project. — Jon Steiber, Grimes County Engineer

County Engineer Jon Steiber reported that three bids were received for the GLO MIT-MOD Tawneyberry/Live Oak road project, 24-065-085-E761 with Eubank Excavation submitting the low bid of \$697,385.20, or \$731,008.80 including alternative items. Steiber recommended awarding to Eubank Excavation on the basis of lowest and best bid. He noted that the engineer's cost estimate was \$550,000 and that \$491,000 has been identified for construction through the grant, with an additional \$59,000 requested in the fiscal year 2027 budget, leaving a shortfall of \$181,008.80. Steiber presented three options: fund the difference through the upcoming budget, reduce the linear footage, or use county fund balance. Commissioner Chad Mallett suggested the funding discussion belonged in the budget process rather than at this moment. County Attorney Megan Barcak advised making a motion to award the contract with funding to be discussed during the 2027 budget line item discussion.

Action: **Motion by Commissioner Chad Mallett to Award the GLO MIT-MOD Tawneyberry/Live Oak Road project 24-065-085-E761 in the amount of \$731,008.80 to Eubank Excavation LLC on the basis of lowest and best bid. Seconded by Commissioner David Tullos. Carried.**

15. Request authorization to negotiate a professional services contract with HR Green, Inc for pipeline permitting and inspection, no cost to Grimes County. — Jon Steiber, Grimes County Engineer

County Engineer Jon Steiber explained that pipeline construction in Grimes County requires various permits and inspections covering driveways, floodplain issues, road use, road crossings, borings, and occasionally site plans for permanent pump or switch stations. Steiber noted that he, along with other county staff, spent approximately six hundred hours on permitting and inspection work for the Kinder Morgan pipeline over sixteen months, and that the fees charged for in-house work do not adequately cover the effort required. He proposed engaging HR Green, Inc., a construction management firm experienced in pipeline inspections, to conduct inspections and submit detailed inspection reports for the upcoming Grand Prix pipeline project crossing the north of the county, thereby protecting county rights of way and roads during construction. Steiber indicated this arrangement would likely become standard practice for the one to two pipeline projects the county typically receives annually and recommended approval. County Attorney Megan Barcak clarified for the record that this item authorizes negotiation of the contract only and is not approval of the contract itself, with the final contract to be presented to the court at a later date.

Action: **Motion by Commissioner Chad Mallett to Authorize negotiation of a professional services contract with HR Green, Inc. for pipeline permitting and inspection, at no cost to Grimes County. Seconded by Commissioner Michael Raska. Carried.**

16. **Discuss and take action to approve a professional services agreement with 5engineering, LLC for private development permit application review, no cost to Grimes County. — Jon Steiber, Grimes County Engineer**

County Engineer Jon Steiber explained that this consulting contract with 5engineering, LLC would assist with complex plan reviews for private development permits. He noted that 5engineering is a drainage specialist and the county occasionally receives large, complex plans requiring additional expertise. Commissioner Chad Mallett clarified the cost structure, and Steiber confirmed that the developer pays an upfront fee when submitting the permit application, which the consultant then draws from during the review process, typically lasting three to six months.

Action: **Motion by Commissioner Michael Raska to Approve the professional services agreement with 5engineering, LLC for private development permit application review, at no cost to Grimes County. Seconded by Commissioner Chad Mallett. Carried.**

See Exhibit D.

17. **Consider and take action to approve the 5-year contract with CapRisk Consulting Group for OPEB Actuarial Valuations. — Jessi Murphy, Grimes County Auditor**

County Auditor Jessi Murphy presented a five-year agreement with CapRisk Consulting Group for OPEB actuarial valuations, noting that the contract includes a thirty-day termination clause and that the county has an established relationship with the firm. County Judge Joe Fauth indicated he was familiar with the company and had received positive referrals.

Action: **Motion by County Judge Joe Fauth to Approve the 5-year contract with CapRisk Consulting Group for OPEB Actuarial Valuations. Seconded by Commissioner Phillip Cox. Carried.**

18. **Consider and take action regarding the Burn Ban and authorize the County Judge as signatory. — Joe Fauth III, Grimes County Judge**

Current Burn Ban ordered August 19, 2026, expiring November 17, 2026. No action taken.

19. **Discuss, determine and approve the Commissioners Court schedule for FY 2027; Texas Local Government Code Section 81.005. — Joe Fauth III, Grimes County Judge**

County Judge Joe Fauth presented the Commissioners Court schedule for fiscal year 2027, noting that the court meets on the first and third Wednesday of each month, with all Wednesdays in August and September scheduled as regular meetings to ensure compliance with statute during budget discussions and decisions.

Action: **Motion by County Judge Joe Fauth to Approve the Commissioners Court meeting schedule for FY 2027, meeting on the first and third Wednesday of each month, with all Wednesdays in August and September designated as regular meetings. Seconded by Commissioner Michael Raska. Carried.**

20. **Discuss and take action on any issue regarding FY 27 Proposed Budget. — Joe Fauth III, Grimes County Judge**

County Auditor Jessi Murphy walked the Commissioners Court through the FY 2027 proposed budget, presenting two options for TCOLE employee compensation structures. Human Resource Director Atina Adair explained that Option One would move patrol deputies and deputy constables from the current year midpoint to the midpoint, then add a four-dollar increase across the board, while Option Two would apply a four-dollar increase to the current salary structure for all TCOLE employees and expand the step scale from nine plus to sixteen plus to honor prior year experience from other agencies. After extensive discussion, County Judge Joe Fauth initially favored Option One but reconsidered, while Commissioner Tullos and Commissioner Mallett expressed concern that Option Two, despite providing equal treatment across positions, might lead the Sheriff's Office to use SB 22 funds to supplement patrol deputy salaries and create wage disparities. The court took a roll call vote on the judge's motion to adopt Option Two, which failed 2 Yea and 3 Nay, resulting in the adoption of Option One instead. The court then addressed numerous detailed budget adjustments, including software and hardware updates for IT development, corrections to overtime budgets, and position changes across multiple departments. Significant items included approving Fire Marshal Dione Bumpous's transition budget for her academy attendance and recommending removal of her conference travel line, authorizing an additional patrol deputy position to be funded through SB 22 funds, and adjusting the jail's contract with Southern Health Partners by transferring \$4,500 from inmate medical to the professional services line. The court also grappled with funding for County Engineer Jon Steiber's road and bridge grant projects, ultimately approving a transfer of \$181,008 from Road and Bridge reserves to cover shortfalls in the Tawneyberry Live Oak grant.

Action: Motion by County Judge Joe Fauth to Approve option two for the TCOLE salary structure in the FY 2027 budget, adding a \$4 per hour increase to the current salary structure for all TCOLE employees across the grid and expanding the step scale from 9+ to 16+. Seconded by Commissioner Phillip Cox. Failed (2–3–0).

Record Vote: Voting Yea: County Judge Joe Fauth, Commissioner Phillip Cox
Voting Nay: Commissioner Chad Mallett, Commissioner David Tullos, Commissioner Michael Raska

Action: Motion by Commissioner Chad Mallett to Approve option one for the TCOLE salary structure in the FY 2027 budget, moving patrol deputies' current year midpoint to the min and adding a \$4 per hour increase to the salary structure. Seconded by Commissioner David Tullos. Carried (3–2–0).

Record Vote: Voting Yea: Commissioner Chad Mallett, Commissioner David Tullos, Commissioner Michael Raska.
Voting Nay: County Judge Joe Fauth, Commissioner Phillip Cox

21. Consider the proposed budget for FY 2026/2027 and take action to adopt the budget with a record vote pursuant to Local Government Code 111.008. — Joe Fauth III, Grimes County Judge

*NOTE: Budget must be adopted before the tax rate pursuant to Local Government Code 111.010.

Following a two-hour recess to allow the auditor's office to incorporate all discussed changes, the court reviewed the final balanced budget document and confirmed all modifications had been properly recorded before preparing to formally adopt the budget.

County Judge Joe Fauth introduced the item to consider adopting the fiscal year 2026–2027 budget. Commissioner Chad Mallett moved to adopt the budget as presented. County Judge Joe

Fauth seconded the motion and opened the floor for discussion. Hearing none, the court proceeded with a record vote.

Action: **Motion by Commissioner Chad Mallett to Adopt the proposed FY 2026/2027 budget for Grimes County with the changes discussed, pursuant to Local Government Code Section 111.008. Seconded by County Judge Joe Fauth. Carried (5–0–0).**

Record Vote: Voting Yea: Commissioner Chad Mallett, Commissioner David Tullos, Commissioner Michael Raska, Commissioner Phillip Cox and County Judge Joe Fauth

22. Consider and take action to adopt the tax rate with a record vote for Grimes County for Tax Year 2026 pursuant to Local Government Code 111.010 as follows: — Joe Fauth III, Grimes County Judge

We, the Commissioners Court of Grimes County, do hereby adopt the tax rate per \$100 taxable valuation for Grimes County for Tax Year 2026 as follows:

\$0.395000 for the purposes of maintenance and operations

\$0.000000 for the payment of debt service

\$0.395000 total tax rate

County Judge Joe Fauth noted that Chapter 26 of the property tax code requires the Commissioners Court of Grimes County to adopt a tax rate and requested a motion to accept the proposed rate of \$0.395000 per \$100 taxable valuation for maintenance and operations, with \$0.000000 for debt service, for a total tax rate of \$0.395000. Commissioner David Tullos moved the proposed tax rate for adoption. County Judge Joe Fauth then conducted a roll call vote, with Commissioners Mallett, Tullos, Raska, and Cox each voting affirmatively, as did the County Judge. After the commissioners signed the necessary documents, County Judge Joe Fauth thanked the auditors for their work and noted that the adopted tax rate represents the lowest tax rate for Grimes County since 1990 or 1991. County Attorney Megan Barcak clarified the effective date in the record to be the 16th day of September, and County Judge Joe Fauth expressed appreciation to the court for the work involved in reaching this rate, which benefits the citizens of Grimes County.

Action: **Motion by Commissioner David Tullos to Adopt the tax rate for Grimes County for Tax Year 2026 at \$0.3950 per \$100 taxable valuation (\$0.3950 for maintenance and operations, \$0.0000 for debt service), pursuant to Local Government Code Section 111.010. Seconded by Commissioner Phillip Cox. Carried (5–0–0).**

Record Vote: Voting Yea: Commissioner Chad Mallett, Commissioner David Tullos, Commissioner Michael Raska, Commissioner Phillip Cox, County Judge Joe Fauth.

See Exhibit E.

Motion by Commissioner Michael Raska to Adjourn the meeting. Seconded by Commissioner Chad Mallett. Carried. The meeting adjourned.

THE OFFICIAL MINUTES OF THE GRIMES COUNTY COMMISSIONERS COURT ON September 16th, 2026, ARE HEREBY APPROVED.

County Clerk Barbara Kimich

EXHIBITS

Exhibit A — Scanned Image.pdf

Exhibit B — BVR solid waste contract.pdf

Exhibit C — Contract compactor rentals of America.pdf

Exhibit D — 5engineering LLC Grimes County Permit Review Contract.pdf

Exhibit E — tax rate order 2026 - executed.pdf

AMENDMENT #6
TO
HEALTH SERVICES AGREEMENT

This AMENDMENT #6, to Health Services Agreement dated October 1, 2020, between Grimes County, Texas (hereinafter referred to as "County", and Southern Health Partners, Inc., d/b/a SHP Vista Health Management, Inc., a Delaware Corporation, (hereinafter referred to as "SHP"), is entered into as of this 16 day of September 2026.

WITNESSETH:

WHEREAS, County and SHP desire to amend the Health Services Agreement dated October 1, 2020, between County and SHP.

NOW THEREFORE, in consideration of the covenants and promises hereinafter made, the parties hereto agree to the following amended terms:

Section 6.1 is hereby amended and replaced in its entirety by the following:

6.1 Term. The original Agreement between the parties commenced on October 1, 2020. The renewal period of this Agreement shall run from October 1, 2026, through September 30, 2027. This Agreement may thereafter be extended for additional periods of twelve months each, if mutually agreeable to both parties.

Section 7.1 is hereby amended and replaced in its entirety by the following:

7.1 Base Compensation. Effective October 1, 2026, County shall compensate SHP based on the twelve-month annualized price of \$160,541.64 during the term of this Agreement, payable in monthly installments. Monthly installments during the term of this Agreement based on the twelve-month annualized price of \$160,541.64 shall be in the amount of \$13,378.47 each. SHP shall bill County approximately thirty (30) days prior to the month in which services are to be rendered. County agrees to pay SHP prior to the tenth day of the month in which services are rendered. In the event this Agreement should commence or terminate on a date other than the first or last day of any calendar month, compensation to SHP shall be prorated accordingly for the shortened month.

Section 7.2 is hereby amended and replaced in its entirety by the following:

7.2 Increases in Inmate Population. County and SHP agree that, effective October 1, 2026, the annual base price is calculated based upon an average daily inmate population of up to 100. If the average daily inmate population exceeds 100 inmates for any given month, the compensation payable to SHP by County shall be increased by a per diem rate of \$1.60 for each inmate over 100. The average daily inmate resident population shall be calculated by adding the population or head count totals taken each day and dividing by the number of days of the month. The excess over an average of 100, if any, will be multiplied by the per diem rate and by the number of days in the month to arrive at the increase in compensation payable to SHP for that month. In all cases where adjustments become necessary, the invoice adjustment

will be made on the invoice for a subsequent month's services. For example, if there is an average population for any given month of 105 inmates, resulting in an excess of five (5) inmates, then SHP shall receive additional compensation of five (5) times the per diem rate times the number of days in that month. The resulting amount shall be an addition to the regular base fee and will be billed on a subsequent monthly invoice.

This per diem is intended to cover additional cost in those instances where minor, short-term changes in the inmate population result in the higher utilization of routine supplies and services. However, the per diem is not intended to provide for any additional fixed costs, such as new fixed staffing positions that might prove necessary if the inmate population grows significantly and if the population increase is sustained. Should the average daily population exceed 100 for any three consecutive months, or if the average daily inmate population is less than 100 for any three consecutive months, either party may request renegotiation of the contract terms and pricing. In such case of a sustained increase in population, SHP reserves the right to negotiate for an increase to its staffing complement and its contract price in order to continue to provide services to the increased number of inmates and maintain the quality of care. This would be done with the full knowledge and agreement of the Sheriff and other involved County officials, and following appropriate notification to County.

IN WITNESS WHEREOF, the parties have executed this Amendment in their official capacities with legal authority to do so.

GRIMES COUNTY, TX

BY:


J. E. FAULSTICH
County Judge

Date: 9-16-2026

ATTEST:

Barbara Kimmel

Date: 9-16-26

SOUTHERN HEALTH PARTNERS, INC.
 d/b/a SHP VISTA HEALTH MANAGEMENT, INC.

BY:


Jennifer Hairsine
 Jennifer Hairsine, Chief Executive Officer

Date: 9-23-2026

GRIMES COUNTY STANDARD CONTRACT

This Agreement is entered into by and between the Grimes County, Texas, a political subdivision (hereinafter referred to as "County") and BVR Waste and Recycling ("Contractor"), both of which may be referred to herein collectively as the "Parties".

The Parties hereto severally and collectively agree, and by the execution hereof are bound, to the mutual obligations herein contained and to the performance and accomplishment of the tasks hereinafter described.

1. **TERM.** This agreement shall commence on the 1st day of October 2026 and shall terminate on the 1st day of October, 2027, or upon completion of the project, unless terminated sooner according to the terms hereof. The term of the agreement may be extended annually two times, for a maximum contract term not to exceed three (3) years, at the County's discretion and the Contractor's agreement, if amended in accordance with Section 14 "Amendments."

BID PRICE ESCALATION. Contractor may submit, at their option, a request for consideration of bid item cost adjustments based on market conditions prior to annual renewal of the agreement. No individual bid item cost may be adjusted by more than 2% of the original bid item cost. Contractor shall include proof of fair and reasonable bid item unit costs prior to the date of renewal. County shall verify that adjusted bid item costs are fair and reasonable prior to renewal of the agreement.

2. **SCOPE OF SERVICES.** Contractor agrees to provide the services described in the scope of services attached as Attachment A, and other related services as assigned and mutually agreed to by the Parties (collectively referred to herein as "Services"). All work performed by Contractor hereunder shall be performed to the satisfaction of County. The determination made by County shall be final, binding, and conclusive on all parties hereto. County shall be under no obligation to pay for any work performed by contractor, which is not satisfactory to the county.
3. **COMPENSATION.** In consideration of Contractor's performance of all Services set forth in this Agreement, County agrees to pay invoices within sixty (60) days from receipt of such invoice. County may challenge an invoice by providing notice to Contractor prior to the payment deadline. County may withhold any portion of the payment that is being challenged until such concerns are resolved. In the event Contractor has provided a bid to County ("Bid"), then Contractor shall not exceed the amount included on the Bid without prior written approval from County. County shall have not obligation to pay amounts exceeding the amount stated on the Bid.
4. **OWNERSHIP OF MATERIALS AND DOCUMENTS.** All work performed under this Agreement shall be work for hire. Contractor hereby assigned any and all rights or claims it may have to property produced or created under this Agreement to County. Any and all materials, documents, or information in whatsoever form and character produced by Contractor pursuant to the provisions of this Agreement is the exclusive property of

County; and no such materials, documents, or information shall be the subject of any copyright or proprietary claim by Contractor.

5. RECORDS RETENTION.

5.1 Contractor and its subcontractors, if any, shall properly, accurately and completely maintain all documents, papers, and records, and other evidence pertaining to the services rendered hereunder (hereafter referred to as "documents"), and shall make such materials available to the County at their respective offices, at all reasonable times and as often as County may deem necessary during the Agreement period, including any extension or renewal hereof, and the record retention period established herein, for purposes of audit, inspection, examination, and making excerpts or copies of same by County and any of its authorized representatives.

5.2 Contractor shall retain any and all documents produced as a result of services provided hereunder for a period of four (4) years (hereafter referred to as "retention period") from the date of termination of the Agreement. If, at the end of the retention period, there is litigation or other questions arising from, involving or concerning this documentation or the services provided hereunder, Contractor shall retain the records until the resolution of such litigation or other such questions. Contractor acknowledges and agrees that County shall have access to any and all such documents at any and all times, as deemed necessary by County, during said retention period. County may, at its election, require Contractor to return said documents to County prior to or at the conclusion of said retention.

6. TERMINATION.

6.1 This Agreement may be terminated by County with or without cause upon thirty (30) days written notice to Contractor.

6.2 Upon termination of this Agreement, Contractor shall affect an orderly transfer to County or as the County may designate, at no additional cost to County, all completed or partially completed documents, papers, records, charts, reports, and any other materials or information produced as a result of or pertaining to the services rendered by Contractor, or provided to Contractor, hereunder, regardless of storage medium, if so requested by County. Any record transfer shall be completed within thirty (30) calendar days of a written request by County and shall be completed at Contractor's sole cost and expense. Payment of compensation due or to become due to Contractor is conditioned upon delivery of all such documents, if requested.

6.3 Within forty-five (45) calendar days of the effective date of completion, or termination or expiration of this Agreement, Contractor shall submit to County its claims, in detail, for the monies owed by County for services performed under this Agreement through the effective date of termination. Failure by Contractor to submit its claims within said forty-five (45) calendar days shall negate any liability on the part of County and constitute a waiver by Contractor of any and all right or claims to collect moneys that Contractor may rightfully be otherwise entitled to for Services performed under this Agreement.

6.4 Upon the effective date of expiration or termination of this Agreement, Contractor shall

cease all operations of work being performed by Contractor or any of its subcontractors under this Agreement.

6.5 County termination of this Agreement, whether for cause or otherwise, shall not be County's sole remedy, nor shall such termination limit, in any way, at law or at equity. County shall have the right to seek damages from or otherwise pursue Contractor for any default hereunder or any other action allowed to County through law or in equity.

7. NOTICE. Except where the terms of this Agreement expressly provide otherwise, any election, notice or communication required or permitted to be given under this Agreement shall be in writing and deemed to have been duly given if and when delivered personally (with receipt acknowledged), or three (3) days after depositing same in the U.S. mail, first class, with proper postage prepaid, or upon receipt if sending the same by certified mail, return receipt requested, or upon receipt when sent by a commercial courier service (such as Federal Express) for expedited delivery to be confirmed in writing by such courier, at the addresses set forth below or to such other address as either party may from time to time designate in writing.

If intended for County, to:
 GRIMES COUNTY, TEXAS
 Attn: Philip Podraza
 1170 County Road 280
 Anderson, TX 77830
 philip.podraza@grimescountytexas.gov

If intended for Contractor, to:
 BVR Waste and Recycling
 Attn: Cody Sheffield
 8825 Stewarts Meadow
 Brazos County, TX 77845
 csheffield@bigcompany.com

8. INSURANCE

8.1 Prior to the commencement of any work under this Agreement, Contractor shall furnish copies of all required endorsements and completed certificate of insurance ("Certificates") to the County prior to beginning work under this Agreement. The Certificate(s) shall be completed by an agent and signed by a authorized representative of the carrier, and list the agent's signature and phone number. The County shall have no duty to pay or perform under this Agreement until such Certificate(s) have been received and approved by the County. No officer or employee of County shall have the authority to waive this requirement without approval from Commissioners Court. It is understood and agreed that the insurance required is in addition to and separate from any other obligation contained in this Agreement and that no claim or action by or on behalf of the County shall be limited to insurance coverage provided.

8.2 County shall be entitled, upon request and without expense, to receive copies of the policies, declaration page, and all required endorsements. Contractor shall be required to comply with any County request for such documentation within 10 days.

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8.3 Contractor shall obtain and maintain in full force and effect for the duration of this Agreement, and any extension hereof, at Contractor's sole expense, insurance coverage written on an occurrence basis, unless otherwise indicated, by companies authorized to do business in the State of Texas and with an A.M Best's rating of no less than A- (VII), in the following types and for an amount not less than the amount listed below:

<i>INSURANCE TYPE</i>	<i>LIMITS</i>
1. Workers' Compensation	Statutory
2. Employers' Liability	\$1,000,000/\$1,000,000/\$1,000,000
3. Commercial General Liability Insurance to include coverage for the following: a. Premises/Operations b. Products/Completed Operations c. Personal/Advertising Injury d. Contractual Liability e. Independent Contractors	For Bodily Injury and Property Damage \$1,000,000 per occurrence; \$2,000,000 general aggregate, or its equivalent in Umbrella or Excess Liability Coverage must be on a per project aggregate.
4. Business Automobile Liability a. Owned/leased vehicles b. Non-owned vehicles c. Hired Vehicles	Combined Single Limit for bodily injury and Property Damage of \$1,000,000 per occurrence
5. Professional Liability	\$1,000,000 per claim damages by reason of any act, malpractice, error, or omission in the professional service.
*6. Cyber Liability	\$1,000,000 per claim \$2,000,000 general aggregate, or its equivalent in Umbrella or Excess Liability Coverage.
*If Applicable to the work being provided, as determined by the County	

8.4 Contractor agrees that with respect to the above required insurance, all insurance policies are to contain or be endorsed to contain the following provisions:

- a) Name the COUNTY, its officers, officials, employees, volunteers, and elected representatives as additional insureds by endorsement, as respects operations and activities of, or on behalf of, the named insured performed under contract with the County, with the exception of the workers' compensation and professional liability policies;
- b) Contractor's insurance is primary and non-contributory with respect to any other insurance or self-insurance carried by County;
- c) Provide for an endorsement that the "other insurance" clause shall not apply to the County of Grimes where the County is an additional insured shown on the policy;
- d) Workers' compensation, employers' liability, general liability and automobile liability policies will provide a waiver of subrogation in favor of the County;
- e) Provide advance written notice directly to County of any suspension or non-renewal in coverage, and not less than ten (10) calendar days advance notice for nonpayment of premium.

8.5 Within five (5) calendar days of a suspension, cancellation or non-renewal of coverage,

Contractor shall provide a replacement Certificate of Insurance and applicable endorsements to County. County shall have the option to suspend Contractor's performance should there be a lapse in coverage at any time during this contract. Failure to provide and to maintain the required insurance shall constitute a material breach of this Agreement.

8.6 Nothing herein contained shall be construed as limiting in any way the extent to which Contractor may be held responsible for payments of damages to persons or property resulting from Contractor's or its subcontractors' performance of the work covered under this Agreement.

9. INDEMNIFICATION. CONTRACTOR COVENANTS AND AGREES TO FULLY INDEMNIFY, DEFEND AND HOLD HARMLESS, THE COUNTY AND THE ELECTED OFFICIALS, EMPLOYEES, OFFICERS, DIRECTORS, VOLUNTEERS AND REPRESENTATIVES OF THE COUNTY, INDIVIDUALLY AND COLLECTIVELY, FROM AND AGAINST ANY AND ALL COSTS, CLAIMS, LIENS, DAMAGES, LOSSES, EXPENSES, FEES, FINES, PENALTIES, PROCEEDINGS, ACTIONS, DEMANDS, CAUSES OF ACTION, LIABILITY AND SUITS OF ANY KIND AND NATURE, INCLUDING BUT NOT LIMITED TO, PERSONAL OR BODILY INJURY, DEATH AND PROPERTY DAMAGE, MADE UPON THE COUNTY DIRECTLY OR INDIRECTLY ARISING OUT OF, RESULTING FROM OR RELATED TO CONTRACTOR'S ACTIVITIES UNDER THIS AGREEMENT, INCLUDING ANY ACTS OR OMISSIONS OF CONTRACTOR, ANY AGENT, OFFICER, DIRECTOR, REPRESENTATIVE, EMPLOYEE, CONTRACTOR OR SUBCONTRACTOR OF CONTRACTOR, AND THEIR RESPECTIVE OFFICERS, AGENTS EMPLOYEES, DIRECTORS AND REPRESENTATIVES WHILE IN THE EXERCISE OF THE RIGHTS OR PERFORMANCE OF THE DUTIES UNDER THIS AGREEMENT. The indemnity provided for in this paragraph shall not apply to any liability resulting from the gross negligence of County, its officers or employees, in instances where such negligence causes personal injury, death, or property damage. County does not waive any governmental immunity available to the County under Texas law.
10. ASSIGNMENT AND SUBCONTRACTING. All work performed under this contract shall be performed by Contractor. Contractor shall not assign this Agreement, without said written approval from County. Any attempt to assign this Agreement shall automatically be null and void. The violation of this provision by Contractor shall in no event release Contractor from any obligation under the terms of this Agreement, nor shall it relieve or release Contractor from the payment of any damages to County, which County sustains as a result of such violation.
11. INDEPENDENT CONTRACTOR. Contractor covenants and agrees that it is an independent contractor and not an officer, agent, servant or employee of County; that Contractor shall have exclusive control of and exclusive right to control the details of the work performed hereunder and all persons performing same and shall be responsible for the acts and omissions of its officers, agents, employees, contractors, subcontractors and Contractors. Contractor agrees the doctrine of respondent superior shall not apply as

between County and Contractor, its officers, agents, employees, contractors, and subcontractors. Nothing herein shall be construed as creating the relationship of employer-employee, principal-agent, partners or joint venturers between County and Contractor. The Parties hereto understand and agree that the County shall not be liable for any claims which may be asserted by any third party occurring in connection with the Services to be performed by the Contractor under this Agreement and that the Contractor has no authority to bind the County.

12. NON-DISCRIMINATION. As a party to this contract, Contractor understands and agrees to comply with the *Non-Discrimination Policy* of the County. Contractor shall not discriminate on the basis of race, color, religion, national origin, sex, sexual orientation, gender identity, veteran status, age, or disability, unless exempted by state or federal law, or as otherwise established herein.
13. CONFLICT OF INTEREST. County officer and employees are prohibited from having a direct or indirect financial interest in any contract with the County. Contractor warrants and certifies, and this Agreement is made in reliance thereon, that by contracting with the County, Contractor does not cause a County employee or officer to have a prohibited financial interest in the Contract.
14. AMENDMENTS. Except where the terms of this Agreement expressly provide otherwise, any alterations, additions, or deletions to the terms hereof, shall be effected by amendment, in writing, executed by both County and Contractor.
15. SEVERABILITY. If any clause or provision of this Agreement is held invalid, illegal or unenforceable under present or future federal, state or local laws then and in that event it is the intention of the parties hereto that such invalidity, illegality or unenforceability shall not affect any other clause or provision hereof and that the remainder of this Agreement shall be construed as if such invalid, illegal or unenforceable clause or provision was never contained herein; it is also the intention of the parties hereto that in lieu of each clause or provision of this Agreement that is invalid, illegal, or unenforceable, there be added as a part of the Agreement a clause or provision as similar in terms to such invalid, illegal or unenforceable clause or provision as may be possible, legal, valid and enforceable.
16. LICENSES/CERTIFICATIONS. Contractor warrants and certifies that Contractor and any other person designated to provide services hereunder has the requisite training, license and/or certification to provide said services, and meets all competence standards promulgated by all other authoritative bodies, as applicable to the services provided herein.
17. COMPLIANCE. Contractor shall provide and perform all services required under this Agreement in compliance with all applicable federal, state and local laws, rules and regulations.
18. NON-WAIVER OF PERFORMANCE. Unless otherwise specifically provided for in this Agreement, a waiver by either Party of a breach of any of the terms, conditions, covenants or guarantees of this Agreement shall not be construed or held to be a waiver of any

succeeding or preceding breach of the same or any other term, condition, covenant or guarantee herein contained.

19. AMENDMENTS. No act or omission by a Party shall in any manner impair or prejudice any right, power, privilege, or remedy available to that Party hereunder or by law or in equity, such rights, powers, privileges, or remedies to be always specifically preserved hereby.
20. CHOICE OF LAW AND VENUE. This agreement shall be construed under and in accordance with the laws of the state of Texas and all obligations of the parties created hereunder are performable in Grimes County, Texas. Any legal action or proceeding brought or maintained, directly or indirectly, as a result of this Agreement shall be heard and determined in the District Court or in the County Court at Law Court in Grimes County, Texas.
21. MISCELLANEOUS.
 - 21.1 The signer of this Agreement for Contractor represents, warrants, assures and guarantees that signer has full legal authority to execute this Agreement on behalf of Contractor and to bind Contractor to all of the terms, conditions, provisions and obligations herein contained.
 - 21.2 This Agreement shall be binding on and inure to the benefit of the parties hereto and their respective heirs, executors, administrators, legal representatives, and successors and assigns, except as otherwise expressly provided for herein.
 - 21.3 The headings and captions contained in this Agreement are for convenience of reference only, and in no way limit or enlarge the terms and/or conditions of this Agreement.
 - 21.4 Each of the Exhibits and Attachments is an essential part of the Agreement, which governs the rights and duties of the parties, and shall be interpreted in the order of priority as it appears.
 - 21.5 This Agreement, together with its authorizing ordinance and its exhibits, if any, constitute the final and entire agreement between the parties hereto and contain all of the terms and conditions agreed upon. No other agreements, oral or otherwise, regarding the subject matter of this Agreement shall be deemed to exist or to bind the parties hereto, unless same be in writing, dated subsequent to the date hereto, and duly executed by the parties.

EXECUTED and AGREED to this the 16th day of September, 2026.

SOLID WASTE SERVICES

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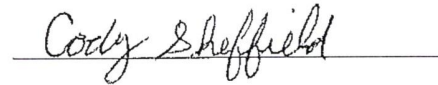
GRIMES COUNTY, TEXAS

BVR Waste and Recycling



Joe Fauth, III
Grimes County Judge

Date: 9-16-2026



Cody Sheffield, Site Manager

Date: 09/02/2026

ATTACHMENTS:

Attachment A: SPECIFICATIONS

Attachment B: BID FORM

Attachment C: CONTRACT TERM AND ACKNOWLEDGMENT

Attachment D: BIDDER AFFIRMATION

ATTACHMENT A: SPECIFICATIONS

GRIMES COUNTY SOLID WASTE SERVICES

Grimes County operates six Household Solid Waste collection sites in the unincorporated area providing waste collection and disposal services to County residents and to discourage illegal dumping.

Grimes County is seeking a Contractor to provide disposal services, leasing services or both to Grimes County to lease 5 waste compactors and/or haul and dispose of solid waste collected at each site. Contractor leasing equipment must be able to provide roll-off containers and equipment necessary for the collection of Household Solid Waste at each collection site for Grimes County. Contractors hauling and disposing of solid waste must meet the requirements of these specifications. Contractors may bid on both leasing, hauling/disposal or may bid individually on leasing and individually on hauling/disposal.

Household Solid Waste includes any garbage and rubbish as defined under Texas Health and Safety Code 361.003 (Solid Waste Disposal Act) which can lawfully be deposited, dumped, or placed in any Grimes County collection site. Household Solid Waste does not include demolition/construction debris, hazardous substances, or industrial solid waste.

Roll-off containers are the type of solid waste industry container to be provided by the Contractor and loaded by roll-off trucks.

All roll-off containers and collection equipment shall be placed for service within Grimes County and at such locations as selected and prepared by Grimes County and its employees, contractors, or subcontractors. Grimes County shall be solely responsible for obtaining the rights, license, privileges, easements, or title to the real property on which each collection site is located. Grimes County shall prepare the site collection site for the roll-off container and collection equipment, with consultation and advice from the Contractor. After Grimes County has designated a collection site, the Contractor shall provide the roll-off container and collection equipment at such site within thirty (30) days after completion of the necessary site preparation by Grimes County and notice thereof. During the performance of services, the Contractor shall not place collection containers on public streets, alleys, or thoroughfares. All vehicles used by the Contractor to remove and haul solid waste shall be covered to prevent spillage, blowing, or scattering of refuse onto public streets or private property.

All collections made under the agreement shall be made by the Contractor without unnecessary noise, disturbance, or interference with Grimes County citizens.

SOLID WASTE SERVICES

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All roll-off containers, equipment, trucks, vehicles, parts, and accessories utilized in the collections and disposal of waste under the agreement shall be the sole and exclusive property of the Contractor. The sole and exclusive title to any waste collected by the Contractor under this agreement shall remain with Grimes County until it is disposed at the landfill.

The Contractor shall provide the services on an "on-call" basis. Upon notification by Grimes County through the Solid Waste Department and/or its designated employee(s), the Contractor shall provide the services to that collection site within twenty-four (24) hours of notification (exclusive of weekends and Federal holidays). The Contractor shall respond to any complaints within twenty-four (24) hours of receiving notice of such complaints and shall report to Grimes County within a reasonable time thereafter, the action taken on the complaint.

Locations of the solid waste sites are as follows:

Anderson Collection Site – 2075 FM 244, Anderson, TX 77830
Coordinates 30.511720589946755, -95.99100849934806

Bedias Collection Site – 3590 Plum St., Bedias, TX 77831
Coordinates 30.77639309696484, -95.94911553016843

Iola Collection Site – 7505 Hillsboro Rd., Iola, TX 77861
Coordinates 30.774225056570067, -96.08075238495697

Stoneham Collection Site – 10810 Spur 234, Navasota, TX 77868
Coordinates 30.343264619961634, -95.91328621094155

Whitehall Collection Site – 14508 FM 362, Navasota, TX 77868
Coordinates 30.299301994108582, -95.97278184383825

Grimes County Jail – 382 FM 149, Anderson, TX 77830
Coordinates 30.490273335014745, -95.99327259672414

GRIMES COUNTY STANDARD CONTRACT

This Agreement is entered into by and between the Grimes County, Texas, a political subdivision (hereinafter referred to as "County") and CRA AssetCo, LLC dba Compactor Rentals of America ("Contractor"), both of which may be referred to herein collectively as the "Parties".

The Parties hereto severally and collectively agree, and by the execution hereof are bound, to the mutual obligations herein contained and to the performance and accomplishment of the tasks hereinafter described.

1. **TERM.** This agreement shall commence on the 1st day of October 2026 and shall terminate on the 1st day of October, 2027, or upon completion of the project, unless terminated sooner according to the terms hereof. The term of the agreement may be extended annually two times, for a maximum contract term not to exceed three (3) years, at the County's discretion and the Contractor's agreement, if amended in accordance with Section 14 "Amendments."

BID PRICE ESCALATION. Contractor may submit, at their option, a request for consideration of bid item cost adjustments based on market conditions prior to annual renewal of the agreement. No individual bid item cost may be adjusted by more than 2% of the original bid item cost. Contractor shall include proof of fair and reasonable bid item unit costs prior to the date of renewal. County shall verify that adjusted bid item costs are fair and reasonable prior to renewal of the agreement.

2. **SCOPE OF SERVICES.** Contractor agrees to provide the services described in the scope of services attached as Attachment A, and other related services as assigned and mutually agreed to by the Parties (collectively referred to herein as "Services"). All work performed by Contractor hereunder shall be performed to the satisfaction of County. The determination made by County shall be final, binding, and conclusive on all parties hereto. County shall be under no obligation to pay for any work performed by contractor, which is not satisfactory to the county.
3. **COMPENSATION.** In consideration of Contractor's performance of all Services set forth in this Agreement, County agrees to pay invoices within sixty (60) days from receipt of such invoice. County may challenge an invoice by providing notice to Contractor prior to the payment deadline. County may withhold any portion of the payment that is being challenged until such concerns are resolved. In the event Contractor has provided a bid to County ("Bid"), then Contractor shall not exceed the amount included on the Bid without prior written approval from County. County shall have not obligation to pay amounts exceeding the amount stated on the Bid.
4. **OWNERSHIP OF MATERIALS AND DOCUMENTS.** All work performed under this Agreement shall be work for hire. Contractor hereby assigned any and all rights or claims it may have to property produced or created under this Agreement to County. Any and all materials, documents, or information in whatsoever form and character produced by

Contractor pursuant to the provisions of this Agreement is the exclusive property of County; and no such materials, documents, or information shall be the subject of any copyright or proprietary claim by Contractor.

5. RECORDS RETENTION.

5.1 Contractor and its subcontractors, if any, shall properly, accurately and completely maintain all documents, papers, and records, and other evidence pertaining to the services rendered hereunder (hereafter referred to as "documents"), and shall make such materials available to the County at their respective offices, at all reasonable times and as often as County may deem necessary during the Agreement period, including any extension or renewal hereof, and the record retention period established herein, for purposes of audit, inspection, examination, and making excerpts or copies of same by County and any of its authorized representatives.

5.2 Contractor shall retain any and all documents produced as a result of services provided hereunder for a period of four (4) years (hereafter referred to as "retention period") from the date of termination of the Agreement. If, at the end of the retention period, there is litigation or other questions arising from, involving or concerning this documentation or the services provided hereunder, Contractor shall retain the records until the resolution of such litigation or other such questions. Contractor acknowledges and agrees that County shall have access to any and all such documents at any and all times, as deemed necessary by County, during said retention period. County may, at its election, require Contractor to return said documents to County prior to or at the conclusion of said retention.

6. TERMINATION.

6.1 This Agreement may be terminated by County with or without cause upon thirty (30) days written notice to Contractor.

6.2 Upon termination of this Agreement, Contractor shall affect an orderly transfer to County or as the County may designate, at no additional cost to County, all completed or partially completed documents, papers, records, charts, reports, and any other materials or information produced as a result of or pertaining to the services rendered by Contractor, or provided to Contractor, hereunder, regardless of storage medium, if so requested by County. Any record transfer shall be completed within thirty (30) calendar days of a written request by County and shall be completed at Contractor's sole cost and expense. Payment of compensation due or to become due to Contractor is conditioned upon delivery of all such documents, if requested.

6.3 Within forty-five (45) calendar days of the effective date of completion, or termination or expiration of this Agreement, Contractor shall submit to County its claims, in detail, for the monies owed by County for services performed under this Agreement through the effective date of termination. Failure by Contractor to submit its claims within said forty-five (45) calendar days shall negate any liability on the part of County and constitute a waiver by Contractor of any and all right or claims to collect moneys that Contractor may rightfully be otherwise entitled to for Services performed under this Agreement.

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6.5 County termination of this Agreement, whether for cause or otherwise, shall not be County's sole remedy, nor shall such termination limit, in any way, at law or at equity. County shall have the right to seek damages from or otherwise pursue Contractor for any default hereunder or any other action allowed to County through law or in equity.

7. NOTICE. Except where the terms of this Agreement expressly provide otherwise, any election, notice or communication required or permitted to be given under this Agreement shall be in writing and deemed to have been duly given if and when delivered personally (with receipt acknowledged), or three (3) days after depositing same in the U.S. mail, first class, with proper postage prepaid, or upon receipt if sending the same by certified mail, return receipt requested, or upon receipt when sent by a commercial courier service (such as Federal Express) for expedited delivery to be confirmed in writing by such courier, at the addresses set forth below or to such other address as either party may from time to time designate in writing.

If intended for County, to:

GRIMES COUNTY, TEXAS

Attn: Philip Podraza

1170 County Road 280

Anderson, TX 77830

philip.podraza@grimescountytexas.gov

If intended for Contractor, to:

CRA

AssetCO, LLC

dba Compactor

Attn: Emily

Sribhibhadh

ADDRESS

7776 S. Pointe

Parkway Suite

136

COUNTY, STATE, ZIP CODE

Phoenix, AZ 85044

8. INSURANCE

8.1 Prior to the commencement of any work under this Agreement, Contractor shall furnish copies of all required endorsements and completed certificate of insurance ("Certificates") to the County prior to beginning work under this Agreement. The Certificate(s) shall be completed by an agent and signed by a authorized representative of the carrier, and list the agent's signature and phone number. The County shall have no duty to pay or perform under this Agreement until such Certificate(s) have been received and approved by the County. No officer or employee of County shall have the authority to waive this requirement without approval from Commissioners Court. It is understood and agreed that the insurance required is in addition to and separate from any other obligation contained in

SOLID WASTE SERVICES

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this Agreement and that no claim or action by or on behalf of the County shall be limited to insurance coverage provided.

8.2 County shall be entitled, upon request and without expense, to receive copies of the policies, declaration page, and all required endorsements. Contractor shall be required to comply with any County request for such documentation within 10 days.

8.3 Contractor shall obtain and maintain in full force and effect for the duration of this Agreement, and any extension hereof, at Contractor's sole expense, insurance coverage written on an occurrence basis, unless otherwise indicated, by companies authorized to do business in the State of Texas and with an A.M Best's rating of no less than A- (VII), in the following types and for an amount not less than the amount listed below:

<i>INSURANCE TYPE</i>	<i>LIMITS</i>
1. Workers' Compensation	Statutory
2. Employers' Liability	\$1,000,000/\$1,000,000/\$1,000,000
3. Commercial General Liability Insurance to include coverage for the following: a. Premises/Operations b. Products/Completed Operations c. Personal/Advertising Injury d. Contractual Liability e. Independent Contractors	For Bodily Injury and Property Damage \$1,000,000 per occurrence; \$2,000,000 general aggregate, or its equivalent in Umbrella or Excess Liability Coverage must be on a per project aggregate.
4. Business Automobile Liability a. Owned/leased vehicles b. Non-owned vehicles c. Hired Vehicles	Combined Single Limit for bodily injury and Property Damage of \$1,000,000 per occurrence
5. Professional Liability	\$1,000,000 per claim damages by reason of any act, malpractice, error, or omission in the professional service.
*6. Cyber Liability	\$1,000,000 per claim \$2,000,000 general aggregate, or its equivalent in Umbrella or Excess Liability Coverage.
*If Applicable to the work being provided, as determined by the County	

8.4 Contractor agrees that with respect to the above required insurance, all insurance policies are to contain or be endorsed to contain the following provisions:

- a) Name the COUNTY, its officers, officials, employees, volunteers, and elected representatives as additional insureds by endorsement, as respects operations and activities of, or on behalf of, the named insured performed under contract with the County, with the exception of the workers' compensation and professional liability policies;
- b) Contractor's insurance is primary and non-contributory with respect to any other insurance or self-insurance carried by County;
- c) Provide for an endorsement that the "other insurance" clause shall not apply to the County of Grimes where the County is an additional insured shown on the policy;
- d) Workers' compensation, employers' liability, general liability and

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automobile liability policies will provide a waiver of subrogation in favor of the County;

e) Provide advance written notice directly to County of any suspension or non-renewal in coverage, and not less than ten (10) calendar days advance notice for nonpayment of premium.

8.5 Within five (5) calendar days of a suspension, cancellation or non-renewal of coverage, Contractor shall provide a replacement Certificate of Insurance and applicable endorsements to County. County shall have the option to suspend Contractor's performance should there be a lapse in coverage at any time during this contract. Failure to provide and to maintain the required insurance shall constitute a material breach of this Agreement.

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9. INDEMNIFICATION. CONTRACTOR COVENANTS AND AGREES TO FULLY INDEMNIFY, DEFEND AND HOLD HARMLESS, THE COUNTY AND THE ELECTED OFFICIALS, EMPLOYEES, OFFICERS, DIRECTORS, VOLUNTEERS AND REPRESENTATIVES OF THE COUNTY, INDIVIDUALLY AND COLLECTIVELY, FROM AND AGAINST ANY AND ALL COSTS, CLAIMS, LIENS, DAMAGES, LOSSES, EXPENSES, FEES, FINES, PENALTIES, PROCEEDINGS, ACTIONS, DEMANDS, CAUSES OF ACTION, LIABILITY AND SUITS OF ANY KIND AND NATURE, INCLUDING BUT NOT LIMITED TO, PERSONAL OR BODILY INJURY, DEATH AND PROPERTY DAMAGE, MADE UPON THE COUNTY DIRECTLY OR INDIRECTLY ARISING OUT OF, RESULTING FROM OR RELATED TO CONTRACTOR'S ACTIVITIES UNDER THIS AGREEMENT, INCLUDING ANY ACTS OR OMISSIONS OF CONTRACTOR, ANY AGENT, OFFICER, DIRECTOR, REPRESENTATIVE, EMPLOYEE, CONTRACTOR OR SUBCONTRACTOR OF CONTRACTOR, AND THEIR RESPECTIVE OFFICERS, AGENTS EMPLOYEES, DIRECTORS AND REPRESENTATIVES WHILE IN THE EXERCISE OF THE RIGHTS OR PERFORMANCE OF THE DUTIES UNDER THIS AGREEMENT. The indemnity provided for in this paragraph shall not apply to any liability resulting from the gross negligence of County, its officers or employees, in instances where such negligence causes personal injury, death, or property damage. County does not waive any governmental immunity available to the County under Texas law.

10. ASSIGNMENT AND SUBCONTRACTING. All work performed under this contract shall be performed by Contractor. Contractor shall not assign this Agreement, without said written approval from County. Any attempt to assign this Agreement shall automatically be null and void. The violation of this provision by Contractor shall in no event release Contractor from any obligation under the terms of this Agreement, nor shall it relieve or release Contractor from the payment of any damages to County, which County sustains as a result of such violation.

11. **INDEPENDENT CONTRACTOR.** Contractor covenants and agrees that it is an independent contractor and not an officer, agent, servant or employee of County; that Contractor shall have exclusive control of and exclusive right to control the details of the work performed hereunder and all persons performing same and shall be responsible for the acts and omissions of its officers, agents, employees, contractors, subcontractors and Contractors. Contractor agrees the doctrine of respondent superior shall not apply as between County and Contractor, its officers, agents, employees, contractors, and subcontractors. Nothing herein shall be construed as creating the relationship of employer-employee, principal-agent, partners or joint venturers between County and Contractor. The Parties hereto understand and agree that the County shall not be liable for any claims which may be asserted by any third party occurring in connection with the Services to be performed by the Contractor under this Agreement and that the Contractor has no authority to bind the County.
12. **NON-DISCRIMINATION.** As a party to this contract, Contractor understands and agrees to comply with the *Non-Discrimination Policy* of the County. Contractor shall not discriminate on the basis of race, color, religion, national origin, sex, sexual orientation, gender identity, veteran status, age, or disability, unless exempted by state or federal law, or as otherwise established herein.
13. **CONFLICT OF INTEREST.** County officer and employees are prohibited from having a direct or indirect financial interest in any contract with the County. Contractor warrants and certifies, and this Agreement is made in reliance thereon, that by contracting with the County, Contractor does not cause a County employee or officer to have a prohibited financial interest in the Contract.
14. **AMENDMENTS.** Except where the terms of this Agreement expressly provide otherwise, any alterations, additions, or deletions to the terms hereof, shall be effected by amendment, in writing, executed by both County and Contractor.
15. **SEVERABILITY.** If any clause or provision of this Agreement is held invalid, illegal or unenforceable under present or future federal, state or local laws then and in that event it is the intention of the parties hereto that such invalidity, illegality or unenforceability shall not affect any other clause or provision hereof and that the remainder of this Agreement shall be construed as if such invalid, illegal or unenforceable clause or provision was never contained herein; it is also the intention of the parties hereto that in lieu of each clause or provision of this Agreement that is invalid, illegal, or unenforceable, there be added as a part of the Agreement a clause or provision as similar in terms to such invalid, illegal or unenforceable clause or provision as may be possible, legal, valid and enforceable.
16. **LICENSES/CERTIFICATIONS.** Contractor warrants and certifies that Contractor and any other person designated to provide services hereunder has the requisite training, license and/or certification to provide said services, and meets all competence standards promulgated by all other authoritative bodies, as applicable to the services provided herein.

SOLID WASTE SERVICES

FISCAL YEAR 2027

17. **COMPLIANCE.** Contractor shall provide and perform all services required under this Agreement in compliance with all applicable federal, state and local laws, rules and regulations.
18. **NON-WAIVER OF PERFORMANCE.** Unless otherwise specifically provided for in this Agreement, a waiver by either Party of a breach of any of the terms, conditions, covenants or guarantees of this Agreement shall not be construed or held to be a waiver of any succeeding or preceding breach of the same or any other term, condition, covenant or guarantee herein contained.
19. **AMENDMENTS.** No act or omission by a Party shall in any manner impair or prejudice any right, power, privilege, or remedy available to that Party hereunder or by law or in equity, such rights, powers, privileges, or remedies to be always specifically preserved hereby.
20. **CHOICE OF LAW AND VENUE.** This agreement shall be construed under and in accordance with the laws of the state of Texas and all obligations of the parties created hereunder are performable in Grimes County, Texas. Any legal action or proceeding brought or maintained, directly or indirectly, as a result of this Agreement shall be heard and determined in the District Court or in the County Court at Law Court in Grimes County, Texas.
21. **MISCELLANEOUS.**
- 21.1 The signer of this Agreement for Contractor represents, warrants, assures and guarantees that signer has full legal authority to execute this Agreement on behalf of Contractor and to bind Contractor to all of the terms, conditions, provisions and obligations herein contained.
- 21.2 This Agreement shall be binding on and inure to the benefit of the parties hereto and their respective heirs, executors, administrators, legal representatives, and successors and assigns, except as otherwise expressly provided for herein.
- 21.3 The headings and captions contained in this Agreement are for convenience of reference only, and in no way limit or enlarge the terms and/or conditions of this Agreement.
- 21.4 Each of the Exhibits and Attachments is an essential part of the Agreement, which governs the rights and duties of the parties, and shall be interpreted in the order of priority as it appears.
- 21.5 This Agreement, together with its authorizing ordinance and its exhibits, if any, constitute the final and entire agreement between the parties hereto and contain all of the terms and conditions agreed upon. No other agreements, oral or otherwise, regarding the subject matter of this Agreement shall be deemed to exist or to bind the parties hereto, unless same be in writing, dated subsequent to the date hereto, and duly executed by the parties.

EXECUTED and AGREED to this the 16th day of September, 2026.

SOLID WASTE SERVICES

FISCAL YEAR 2027

GRIMES COUNTY, TEXAS

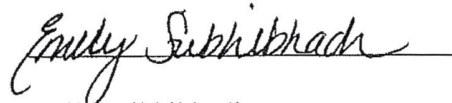
CRA AssetCO, LLC dba Compactor
Rentals of America



Joe Fauth, III

Grimes County Judge

Date: 9-16-2026



Emily Sribhibhadh
Sales Representative

Date: 09/08/2026

ATTACHMENTS:

Attachment A: SPECIFICATIONS

Attachment B: BID FORM

Attachment C: CONTRACT TERM AND ACKNOWLEDGMENT

Attachment D: BIDDER AFFIRMATION

ATTACHMENT A: SPECIFICATIONS

GRIMES COUNTY SOLID WASTE SERVICES

Grimes County operates six Household Solid Waste collection sites in the unincorporated area providing waste collection and disposal services to County residents and to discourage illegal dumping.

Grimes County is seeking a Contractor to provide disposal services, leasing services or both to Grimes County to lease 5 waste compactors and/or haul and dispose of solid waste collected at each site. Contractor leasing equipment must be able to provide roll-off containers and equipment necessary for the collection of Household Solid Waste at each collection site for Grimes County. Contractors hauling and disposing of solid waste must meet the requirements of these specifications. Contractors may bid on both leasing, hauling/disposal or may bid individually on leasing and individually on hauling/disposal.

Household Solid Waste includes any garbage and rubbish as defined under Texas Health and Safety Code 361.003 (Solid Waste Disposal Act) which can lawfully be deposited, dumped, or placed in any Grimes County collection site. Household Solid Waste does not include demolition/construction debris, hazardous substances, or industrial solid waste.

Roll-off containers are the type of solid waste industry container to be provided by the Contractor and loaded by roll-off trucks.

All roll-off containers and collection equipment shall be placed for service within Grimes County and at such locations as selected and prepared by Grimes County and its employees, contractors, or subcontractors. Grimes County shall be solely responsible for obtaining the rights, license, privileges, easements, or title to the real property on which each collection site is located. Grimes County shall prepare the site collection site for the roll-off container and collection equipment, with consultation and advice from the Contractor. After Grimes County has designated a collection site, the Contractor shall provide the roll-off container and collection equipment at such site within thirty (30) days after completion of the necessary site preparation by Grimes County and notice thereof. During the performance of services, the Contractor shall not place collection containers on public streets, alleys, or thoroughfares. All vehicles used by the Contractor to remove and haul solid waste shall be covered to prevent spillage, blowing, or scattering of refuse onto public streets or private property.

All collections made under the agreement shall be made by the Contractor without unnecessary noise, disturbance, or interference with Grimes County citizens.

SOLID WASTE SERVICES

FISCAL YEAR 2027

All roll-off containers, equipment, trucks, vehicles, parts, and accessories utilized in the collections and disposal of waste under the agreement shall be the sole and exclusive property of the Contractor. The sole and exclusive title to any waste collected by the Contractor under this agreement shall remain with Grimes County until it is disposed at the landfill.

The Contractor shall provide the services on an "on-call" basis. Upon notification by Grimes County through the Solid Waste Department and/or its designated employee(s), the Contractor shall provide the services to that collection site within twenty-four (24) hours of notification (exclusive of weekends and Federal holidays). The Contractor shall respond to any complaints within twenty-four (24) hours of receiving notice of such complaints and shall report to Grimes County within a reasonable time thereafter, the action taken on the complaint.

Locations of the solid waste sites are as follows:

Anderson Collection Site – 2075 FM 244, Anderson, TX 77830
Coordinates 30.511720589946755, -95.99100849934806

Bedias Collection Site – 3590 Plum St., Bedias, TX 77831
Coordinates 30.77639309696484, -95.94911553016843

Iola Collection Site – 7505 Hillsboro Rd., Iola, TX 77861
Coordinates 30.774225056570067, -96.08075238495697

Stoneham Collection Site – 10810 Spur 234, Navasota, TX 77868
Coordinates 30.343264619961634, -95.91328621094155

Whitehall Collection Site – 14508 FM 362, Navasota, TX 77868
Coordinates 30.299301994108582, -95.97278184383825

Grimes County Jail – 382 FM 149, Anderson, TX 77830
Coordinates 30.490273335014745, -95.99327259672414

SOLID WASTE SERVICES

FISCAL YEAR 2027

ATTACHMENT C: CONTRACT TERM AND ACKNOWLEDGMENT**GRIMES COUNTY SOLID WASTE SERVICES**

ALL BIDS IN ORDER TO BE IN COMPLIANCE WITH TEXAS STATUTES SHOULD INCLUDE THE FOLLOWING BONDS, IF BID PRICE EXCEEDS THE MONETARY THRESHOLD.

BONDS REQUIRED: NONE

The contract term will be from October 1, 2026 through October 1, 2027, renewal option available annually for up to 3 years.

SUBMITTING BIDS:

Sealed bids, submitted on the attached Bid Form

Should be mailed or delivered to: Grimes County Auditor
Attn: Danya Lewis
270 FM 149 W
Anderson, Texas 77830

THE COMMISSIONERS COURT OF GRIMES COUNTY, TEXAS, RESERVES THE RIGHT TO AWARD THIS CONTRACT TO THE BIDDER WHO PROVIDES THE LOWEST, BEST AND MOST RESPONSIBLE BID AND FURTHER RESERVES THE RIGHT TO WAIVE ANY FORMALITY OR IRREGULARITY, EXCEPT FOR THE TIME OF FILING, TO REJECT ANY OR ALL BIDS, OR REQUIRE NEW BIDS, IF IN THE BEST INTEREST OF GRIMES COUNTY. IF ONLY ONE BID IS RECEIVED, THE BID MAY BE ACCEPTED IF THE COMMISSIONERS COURT FINDS THE PRICE AND OTHER CONDITIONS TO BE FAIR AND REASONABLE. IF THE PRICE AND OTHER CONDITIONS ARE NOT DETERMINED TO BE FAIR AND REASONABLE, IN THE SOLE JUDGMENT OF COMMISSIONERS COURT, THE BID SHALL BE REJECTED.

For further information contact the Grimes County Engineer or the County Auditor's Office at the phone numbers listed below:

Grimes County Engineer	(936) 873-4436
County Assistant Auditor	(936) 873-4414

SOLID WASTE SERVICES

FISCAL YEAR 2027

ATTACHMENT D: BIDDER AFFIRMATION**GRIMES COUNTY SOLID WASTE SERVICES**

Vendor/Bidder affirms that they are duly authorized to execute this Contract, that this company, corporation, firm, partnership or individual has not prepared this bid in collusion with any other bidder, and that the contents of this bid as to price, terms or conditions of said bid have not been communicated by the undersigned nor by any employee or agent to any other person engaged in this type of business prior to the official opening of this bid.

Vendor/Bidder hereby assigns to Purchaser any and all claims for overcharges associated with this Contract which arise under the antitrust laws of the United States, 15 USCA Section 1 et seq., and which arise under the antitrust laws of the State of Texas, Tex. Bus. & Com. Code, Section 15.01, et seq.
Pursuant to 262.0276 (a) of the Texas Local Government Code, Vendor/Bidder, hereby affirms that Vendor/Bidder:

 X Does not own taxable property in Grimes County.

 Does not owe any ad valorem taxes to Grimes County or is not otherwise indebted to Grimes County.

CRA AssetCo, LLC dba Compactor Rentals of America

Name of Contracting Company

Emily Sribhibhadh

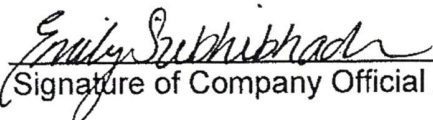
Contact Name

Sales Representative

Title

7776 S. Pointe Parkway Suite 136 Phoenix AZ 85044

Mailing Address City State Zip Code

 09/08/26

Signature of Company Official Authorizing Bid/Offer

Emily Sribhibhadh

Printed Name

(979)595-4293
Phone

Fax

emily@crarent.com
E-mail address

References:

- Cody Sheffield / Brazos Valley Recycling
 - Service Locations: Bryan-College Station, TX / Grimes County
 - Email: csheffield@bigcompany.com
 - Phone: (979)204-9583
- Tania Pond / Reworld Waste Solutions
 - Service Locations: 50+ Locations throughout the United States
 - Email: tsotoarauj@reworldwaste.com
 - Phone: (720)767-9870
- Dan Wrenn / Stonehawk Capital
 - Service Location: Texas
 - Email: dwrenn@stonehawkcapital.com
 - Phone: (214)669-6631
- Linda Venzor / Panhandle Products, LLC
 - Service Location: Dumas, TX
 - Email: lvenzor@texascheese.net
 - Phone: (806)935-7444 ext. 102

Current Units in Grimes County

The compactors currently located at the Grimes County locations are being rented by Compactor Rentals of America to Brazos Valley Recycling. Upon award of the bid, the compactors will remain in place, and the rental agreements will transition directly from Grimes County to Compactor Rentals of America. All rental agreements include our Service Level Guarantees, as follows:

- **Service Response Time – 4 Hours or Less:** I will serve as your single point of contact, coordinating ticket entry and ensuring our service team works quickly toward dispatching a technician. All service activity is tracked so we can review equipment history as needed.
- **Resolution Time – Within 72 Hours:** We will take the necessary steps to resolve any issue within this time frame, whether that involves repairs, part replacement, or determining the appropriate next steps.
- **Equipment Swap-Out Guarantees:** If a unit experiences continued failures, we will evaluate the situation and proceed with a full equipment swap-out when appropriate.

Each location includes the following equipment:

Equipment	Monthly Rental Rate
2 Yard Stationary Compactor	\$403.50/month
40 Yard Stationary Compactor	\$229.00/month

GRIMES COUNTY STANDARD CONTRACT

This Agreement is entered into by and between the Grimes County, Texas, a political subdivision (hereinafter referred to as "County") and 5engineering, LLC ("Contractor"), both of which may be referred to herein collectively as the "Parties".

The Parties hereto severally and collectively agree, and by the execution hereof are bound, to the mutual obligations herein contained and to the performance and accomplishment of the tasks hereinafter described.

1. **TERM.** This agreement shall commence on the on the 16th day of September, 2026, and shall terminate upon completion of the project, unless terminated sooner according to the terms hereof.

The term of the agreement may be extended annually two times, for a maximum contract term not to exceed three (3) years, at the County's discretion and the Contractor's agreement, if amended in accordance with Section 14 "Amendments."

2. **SCOPE OF SERVICES.** Contractor agrees to provide the services described in the scope of services attached as Attachment A, and other related services as assigned and mutually agreed to by the Parties (collectively referred to herein as "Services"). All Services performed by Contractor hereunder shall be performed to the reasonable satisfaction of County. The determination made by County shall be final, binding, and conclusive on all parties hereto. County shall be under no obligation to pay for any work performed by contractor, which is not reasonably satisfactory to the county.
3. **COMPENSATION.** In consideration of Contractor's performance of its Services set forth in this Agreement, County agrees to pay invoices within thirty (30) days from receipt of such invoice. County may dispute an invoice by providing written notice to Contractor prior to the payment deadline. County may withhold such portion of the payment that is being disputed until such disputes are resolved. In the event Contractor has provided a bid to County ("Bid"), then Contractor shall not exceed the amount included on the Bid without prior written approval from County. County shall have no obligation to pay amounts exceeding the amount stated on the Bid without prior written approval.

4. OWNERSHIP OF MATERIALS AND DOCUMENTS. All work performed under this Agreement shall be work for hire. Contractor hereby assigned any and all rights or claims it may have to property produced or created under this Agreement to County. The final materials, documents, or project related information in whatsoever form and character produced by Contractor pursuant to the provisions of this Agreement is the exclusive property of County; and no such materials, documents, or information shall be the subject of any copyright or proprietary claim by Contractor.

5. RECORDS RETENTION.

5.1 Contractor and its subcontractors, if any, shall properly and completely maintain all documents, papers, and records, and other evidence pertaining to the Services rendered hereunder (hereafter referred to as "documents"), and shall make such materials available to the County at their respective offices, at all reasonable times and as often as County may deem necessary during the Agreement period, including any extension or renewal hereof, and the record retention period established herein, for purposes of audit, inspection, examination, and making excerpts or copies of same by County and any of its authorized representatives.

5.2 Contractor shall retain any and all documents produced as a result of Services provided hereunder for a period of four (4) years (hereafter referred to as "retention period") from the date of termination of the Agreement. If, at the end of the retention period, there is litigation or other questions arising from, involving or concerning this documentation or the services provided hereunder, Contractor shall retain the records until the resolution of such litigation or other such questions. Contractor acknowledges and agrees that County shall have access to any and all such documents at any and all times, as deemed necessary by County, during said retention period. County may, at its election, require Contractor to return said documents to County prior to or at the conclusion of said retention.

6. TERMINATION.

6.1 This Agreement may be terminated by County with or without cause upon thirty (30) days written notice to Contractor.

6.2 Upon termination of this Agreement, Contractor shall affect an orderly transfer to County or as the County may designate, at no additional cost to County, completed documents, papers, records, charts, reports, and any other project related materials or information produced as a result of or pertaining to the Services rendered by Contractor, or provided to Contractor, hereunder, regardless of storage medium, if so requested by County. Any record transfer shall be completed within thirty (30) calendar days of a written request by County and shall be completed at Contractor's sole cost and expense. Payment

of compensation due or to become due to Contractor is conditioned upon delivery of all such documents, if requested.

6.3 Within forty-five (45) calendar days of the effective date of completion, or termination or expiration of this Agreement, Contractor shall submit to County its claims, in detail, for the monies owed by County for services performed under this Agreement through the effective date of termination. Failure by Contractor to submit its claims within said forty-five (45) calendar days shall negate any liability on the part of County and constitute a waiver by Contractor of any and all right or claims to collect moneys that Contractor may rightfully be otherwise entitled to for Services performed under this Agreement.

6.4 Upon the effective date of expiration or termination of this Agreement, Contractor shall cease all operations of work being performed by Contractor or any of its subcontractors under this Agreement.

6.5 County termination of this Agreement, whether for cause or otherwise, shall not be County's sole remedy, nor shall such termination limit, in any way, at law or at equity. County shall have the right to seek damages from or otherwise pursue Contractor for any default hereunder or any other action allowed to County through law or in equity.

7. NOTICE. Except where the terms of this Agreement expressly provide otherwise, any election, notice or communication required or permitted to be given under this Agreement shall be in writing and deemed to have been duly given if and when delivered personally (with receipt acknowledged), or three (3) days after depositing same in the U.S. mail, first class, with proper postage prepaid, or upon receipt if sending the same by certified mail, return receipt requested, or upon receipt when sent by a commercial courier service (such as Federal Express) for expedited delivery to be confirmed in writing by such courier, at the addresses set forth below or to such other address as either party may from time to time designate in writing.

If intended for County, to:
GRIMES COUNTY, TEXAS
Attn: Jonathan Steiber
P O Box 593
Anderson, TX 77830

If intended for Contractor, to:
Fivengineering, llc
Attn: Kelly Humphries
1332 Upland Drive
Houston, Texas, 77043

8. INSURANCE

8.1 Prior to the commencement of any work under this Agreement, Contractor shall furnish copies of all required endorsements and completed

certificate of insurance ("Certificates") to the County prior to beginning work under this Agreement. The Certificate(s) shall be completed by an agent and signed by an authorized representative of the carrier, and list the agent's signature and phone number. The County shall have no duty to pay or perform under this Agreement until such Certificate(s) have been received and approved by the County. No officer or employee of County shall have the authority to waive this requirement without approval from Commissioners Court. It is understood and agreed that the insurance required is in addition to and separate from any other obligation contained in this Agreement and that no claim or action by or on behalf of the County shall be limited to insurance coverage provided.

8.2 County shall be entitled, upon request and without expense, to receive copies of the policies, declaration page, and all required endorsements. Contractor shall be required to comply with any County request for such documentation within 10 days.

8.3 Contractor shall obtain and maintain in full force and effect for the duration of this Agreement, and any extension hereof, at Contractor's sole expense, insurance coverage written on an occurrence basis, unless otherwise indicated, by companies authorized to do business in the State of Texas and with an A.M Best's rating of no less than A- (VII), in the following types and for an amount not less than the amount listed below:

INSURANCE TYPE	LIMITS
1. Workers' Compensation 2. Employers' Liability	Statutory \$1,000,000/\$1,000,000/\$1,000,000
3. Commercial General Liability Insurance to include coverage for the following: a. Premises/Operations b. Products/Completed Operations c. Personal/Advertising Injury d. Contractual Liability e. Independent Contractors	For Bodily Injury and Property Damage \$1,000,000 per occurrence; \$2,000,000 general aggregate, or its equivalent in Umbrella or Excess Liability Coverage must be on a per project aggregate.
4. Business Automobile Liability a. Owned/leased vehicles b. Non-owned vehicles c. Hired Vehicles	Combined Single Limit for bodily injury and Property Damage of \$1,000,000 per occurrence
5. Professional Liability	\$1,000,000 per claim damages by reason of any act, malpractice, error, or omission in the professional service.
*6. Cyber Liability	\$1,000,000 per claim \$2,000,000 general aggregate, or its equivalent in Umbrella or Excess Liability Coverage.
*If Applicable to the work being provided, as determined by the County	

8.4 Contractor agrees that with respect to the above required insurance, all insurance policies are to contain or be endorsed to contain the following provisions:

- a) Name the COUNTY, its officers, officials, employees, and elected representatives as additional insureds by endorsement, as respects operations and activities of, or on behalf of, the named insured performed under contract with the County, with the exception of the workers' compensation and professional liability policies;
- b) Contractor's insurance is primary and non-contributory with respect to any other insurance or self-insurance carried by County;
- c) Provide for an endorsement that the "other insurance" clause shall not apply to the County of Grimes where the County is an additional insured shown on the policy;
- d) Workers' compensation, employers' liability, general liability and automobile liability policies will provide a waiver of subrogation in favor of the County;
- e) Provide advance written notice directly to County of any suspension or non-renewal in coverage, and not less than ten (10) calendar days advance notice for nonpayment of premium.

8.5 Within five (5) calendar days of a suspension, cancellation or non-renewal of coverage, Contractor shall provide a replacement Certificate of Insurance and applicable endorsements to County. County shall have the option to suspend Contractor's performance should there be a lapse in coverage at any time during this contract. Failure to provide and to maintain the required insurance shall constitute a material breach of this Agreement.

8.6 Nothing herein contained shall be construed as limiting in any way the extent to which Contractor may be held responsible for payments of damages to persons or property resulting from Contractor's or its subcontractors' performance of the work covered under this Agreement.

9. INDEMNIFICATION. CONTRACTOR COVENANTS AND AGREES TO INDEMNIFY, DEFEND AND HOLD HARMLESS, THE COUNTY AND THE ELECTED OFFICIALS, EMPLOYEES, OFFICERS, DIRECTORS AND REPRESENTATIVES OF THE COUNTY, INDIVIDUALLY AND COLLECTIVELY, FROM AND AGAINST ANY COSTS, CLAIMS, LIENS, DAMAGES, LOSSES, EXPENSES, FEES, FINES, PENALTIES, PROCEEDINGS, ACTIONS, DEMANDS, CAUSES OF ACTION, LIABILITY AND SUITS OF ANY KIND AND NATURE, INCLUDING BUT NOT LIMITED TO, PERSONAL OR BODILY INJURY, DEATH AND PROPERTY DAMAGE, MADE UPON THE COUNTY ARISING OUT OF, RESULTING FROM OR RELATED TO CONTRACTOR'S ACTIVITIES UNDER THIS AGREEMENT, INCLUDING ANY ACTS OR OMISSIONS OF CONTRACTOR, ANY AGENT, OFFICER, DIRECTOR, REPRESENTATIVE, EMPLOYEE, CONTRACTOR OR SUBCONTRACTOR OF CONTRACTOR, AND THEIR RESPECTIVE OFFICERS, AGENTS EMPLOYEES, DIRECTORS AND REPRESENTATIVES WHILE IN THE EXERCISE OF THE RIGHTS OR PERFORMANCE OF THE DUTIES UNDER THIS AGREEMENT. The indemnity provided for in this paragraph shall not apply to any liability resulting from the gross negligence of County, its officers or employees, in instances where such negligence causes personal injury, death, or property damage. County does not waive any governmental immunity available to the County under Texas law.

- 10.ASSIGNMENT AND SUBCONTRACTING.** All Services performed under this contract shall be performed by Contractor. Contractor shall not assign this Agreement, without said written approval from County. Any attempt to assign this Agreement shall automatically be null and void. The violation of this provision by Contractor shall in no event release Contractor from any obligation under the terms of this Agreement, nor shall it relieve or release Contractor from the payment of any damages to County, which County sustains as a result of such violation.
- 11.INDEPENDENT CONTRACTOR.** Contractor covenants and agrees that it is an independent contractor and not an officer, agent, servant or employee of County; that Contractor shall have exclusive control of and exclusive right to control the details of the work performed hereunder and all persons performing same and shall be responsible for the acts and omissions of its officers, agents, employees, contractors, subcontractors and Contractors. Contractor agrees the doctrine of respondent superior shall not apply as between County and Contractor, its officers, agents, employees, contractors, and subcontractors. Nothing herein shall be construed as creating the relationship of employer-employee, principal- agent, partners or joint ventures between County and Contractor. The Parties hereto understand and agree that the County shall not be liable for any claims which may be asserted by any third party occurring in connection with the Services to be performed by the Contractor under this Agreement and that the Contractor has no authority to bind the County.
- 12.NON-DISCRIMINATION.** As a party to this contract, Contractor understands and agrees to comply with the *Non-Discrimination Policy* of the County. Contractor shall not discriminate on the basis of race, color, religion, national origin, sex, sexual orientation, gender identity, veteran status, age, or disability, unless exempted by state or federal law, or as otherwise established herein.
- 13.CONFLICT OF INTEREST.** County officers and employees are prohibited from having a financial interest in any contract with the County. Contractor warrants and certifies, and this Agreement is made in reliance thereon, that by contracting with the County, Contractor does not cause a County employee or officer to have a prohibited financial interest in the Contract.
- 14.AMENDMENTS.** Except where the terms of this Agreement expressly provide otherwise, any alterations, additions, or deletions to the terms hereof, shall be effected by amendment, in writing, executed by both County and Contractor.

- 15.SEVERABILITY.** If any clause or provision of this Agreement is held invalid, illegal or unenforceable under present or future federal, state or local laws then and in that event it is the intention of the parties hereto that such invalidity, illegality or unenforceability shall not affect any other clause or provision hereof and that the remainder of this Agreement shall be construed as if such invalid, illegal or unenforceable clause or provision was never contained herein; it is also the intention of the parties hereto that in lieu of each clause or provision of this Agreement that is invalid, illegal, or unenforceable, there be added as a part of the Agreement a clause or provision as similar in terms to such invalid, illegal or unenforceable clause or provision as may be possible, legal, valid and enforceable.
- 16.LICENSES/CERTIFICATIONS.** Contractor represents that Contractor and any other person designated to provide Services hereunder has the requisite training, license and/or certification to provide said Services, and will comply with the normal and customary industry standards promulgated by all other authoritative bodies, as applicable to the services provided herein.
- 17.COMPLIANCE.** Contractor shall provide and perform its Services required under this Agreement in compliance with applicable federal, state and local laws, rules and regulations.
- 18.NON-WAIVER OF PERFORMANCE.** Unless otherwise specifically provided for in this Agreement, a waiver by either Party of a breach of any of the terms, conditions, covenants or guarantees of this Agreement shall not be construed or held to be a waiver of any succeeding or preceding breach of the same or any other term, condition, covenant or guarantee herein contained.
- 19.AMENDMENTS.** No act or omission by a Party shall in any manner impair or prejudice any right, power, privilege, or remedy available to that Party hereunder or by law or in equity, such rights, powers, privileges, or remedies to be always specifically preserved hereby.
- 20.CHOICE OF LAW AND VENUE.** This agreement shall be construed under and in accordance with the laws of the state of Texas and all obligations of the parties created hereunder are performable in Grimes County, Texas. Any legal action or proceeding brought or maintained as a result of this Agreement shall be heard and determined in the District Court or in the County Court at Law Court in Grimes County, Texas.
- 21.MISCELLANEOUS.**
- 21.1 The signer of this Agreement for Contractor represents that signer has full legal authority to execute this Agreement on behalf of Contractor and to bind Contractor to all of the terms, conditions, provisions and obligations herein

FISCAL YEAR 2026

contained.

21.2 This Agreement shall be binding on and inure to the benefit of the parties hereto and their respective heirs, executors, administrators, legal representatives, and successors and assigns, except as otherwise expressly provided for herein.

21.3 The headings and captions contained in this Agreement are for convenience of reference only, and in no way limit or enlarge the terms and/or conditions of this Agreement.

21.4 Each of the Exhibits and Attachments is an essential part of the Agreement, which governs the rights and duties of the parties, and shall be interpreted in the order of priority as it appears.

21.5 This Agreement, together with its authorizing ordinance and its exhibits, if any, constitute the final and entire agreement between the parties hereto and contain all of the terms and conditions agreed upon. No other agreements, oral or otherwise, regarding the subject matter of this Agreement shall be deemed to exist or to bind the parties hereto, unless same be in writing, dated subsequent to the date hereto, and duly executed by the parties.

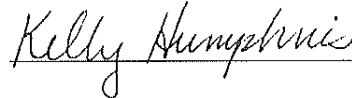
EXECUTED and AGREED to this the 16th day of September, 2026.

GRIMES COUNTY, TEXAS

CONTRACTOR NAME



Joe Fauth III
Grimes County Judge



Kelly Humphries, Principal

Date: 9-16-2026

Date: 8/31/2026

ATTACHMENTS:

Attachment A: PROPOSAL



1332 Upland Dr. Houston, Texas 77043 | 832-800-3483 |

August 31, 2026

Jonathan Steiber, P.E.
Grimes County Engineer
Grimes County
1170 County Road 280
Anderson, TX 77830

Re: Grimes County Road and Development Services Plan and Plat Review Services

Dear Mr. Steiber:

5eengineering, LLC (5e) respectfully submits this proposal to provide plan review services for the Grimes County (County) Road and Development Services departments. 5e is a women owned business and is licensed in the State of Texas to provide professional engineering and surveying services. 5e has a staff who is well versed in the infrastructure that will be developed in the County.

As you and I have discussed previously, the County is starting to experience rapid growth in commercial, multi-family and single-family developments. These developments will require thorough reviews, so they meet or exceed the *Grimes County Infrastructure Regulations, including Appendices A through E* as approved by the County on June 23, 2025. These review services will also extend to any Public Works projects (designed by others) that the County will do to handle the expected growth.

Attached is Exhibit A which outlines the scope of services that 5e will provide on a negotiated work order basis. Exhibit B illustrates the MAX RATES for the personnel that will provide the necessary review services. It is noted that 5e has other specialty firms that we have worked with in the past if a development requires those services (structural, geotechnical, traffic, etc.). 5e will contract with those specialty firms per the direction of the County. 5e offers these extra services to minimize the contractual requirements that the County may require.



Please let me know if you have any questions or require further information. 5e looks forward to assisting the County in its future growth.

Sincerely,

Martin J Cristofaro, P.E., RPLS, CFM, ENV SP
Director of Neighborhood and Drainage Design

EXHIBIT A

SCOPE OF SERVICES

1.0 GENERAL SCOPE

The scope of services under the contract will consist of professional services, on a negotiated work order basis, providing plan review services for the Grimes County (County) Road and Development Services departments. Contractor will provide professional review services to augment current County plan review staff as needed. Contractor plan review staff should be able to:

- 1.1 Examine and review construction documents to enforce code compliance
- 1.2 Consult with architects, engineers, contractors and the public on preliminary plan reviews, permit requirements and related ordinances and procedures
- 1.3 Interface with other technical disciplines and departments on code enforcement and plan review processes
- 1.4 The specific scope, budget, and schedule shall be established prior to authorization of the Project by the County. The plan review staff shall not proceed with the Project prior to authorization by the County.
- 1.5 Attend internal County meetings, including policy training and weekly staff as requested.
- 1.6 Review all plats submitted to County and perform such review in accordance with County's latest regulations for Plats. This will include any Metes and Bounds for property acquisitions by the County (ROW, other lands, etc.)
- 1.7 Review commercial site plans including standard plan review for site layout, drainage functionality, emergency services access, compliance with TCEQ water and wastewater requirements, stormwater quality, impacts to the road right-of-way, and compliance with the Grimes County Floodplain Order.
- 1.8 Review all submitted drainage plans in accordance with The Drainage Criteria in the County Infrastructure Regulations (Section XIII, page 54). This includes reviewing any Drainage Impact Analysis that may be required for certain developments.
- 1.9 Provide a monthly progress report with each invoice, including the authorized scope, status, Staff Augmentation Coverage and schedule.
- 1.10 Any other necessary tasks and/or reviews (non-vertical) as the County Engineer or Director of Development Services may require.

2.0 STAFF AUGMENTATION

- 2.1 Provide staff with expertise to perform the full plan review for plating, drainage, road projects in association with development within Grimes County.

- 2.2 Provide qualified staff to support County staff.
- 2.3 Staffing needs shall be determined by and coordinated by the County. All staff provided shall be subject to review and approval by the County.
- 2.4 The Contractor will manage the work location for qualified staff. Any meetings with customers or County Staff will be conducted via Teams. Contractor will be expected to work M-F 8:00 a.m. through 5:00 p.m. or as reasonable per Grimes County requests.
- 2.5 Contractor will provide all Hardware, software, and equipment needs of staff.
- 2.6 Perform contract management, invoicing, record keeping, and document control.
- 2.7 Perform other tasks as may be requested by Grimes County.



1332 Upland Dr, Houston, TX 77043 | 832-800-3483 | [Max Rates](#)

EXHIBIT B

RATE SHEET (Maximum Rates)

MAXIMUM BILLING RATES BY TYPE			
Row #	Description	Title Initials	Billing Rate
1	Principal	PR	\$450
2	Department Head	DH	\$420
3	Senior Project Manager	SPM	\$390
4	Project Manager	PM	\$390
5	Senior Engineer and Registered Professional Land Surveyor	SE/RPLS	\$330
6	Engineer VII	E7	\$330
7	Engineer VI	E6	\$300
8	Engineer V	E5	\$270
9	Engineer IV	E4	\$240
10	Engineer III	E3	\$210
11	Engineer II	E2	\$210
12	Engineer I	E1	\$180
13	Intern Engineer	INT	\$120
14	Senior GIS Developer	SGD	\$330
15	GIS Developer	GD	\$240
16	Senior GIS Analyst	SGA	\$210
17	GIS Analyst	GA	\$180
18	Senior Designer	SD	\$300
19	Designer	D	\$210
20	Senior CAD Drafter	SC	\$210
21	CAD Drafter	C	\$210
22	Administration	ADM	\$180



Grimes County Road Department

1170 County Road 280 | Anderson, TX 77830 | (936) 873-4436

Grimes County Road Department
1170 County Road 280
Anderson, TX 77830

September 16th, 2026

Grimes County Commissioners Court
270 FM 149 W
Anderson, TX 77830

RE: PROFESSIONAL SERVICES EXEMPTION - TEXAS LOCAL GOVERNMENT CODE 2254 -
5ENGINEERING, LLC - PERMIT REVIEW

5engineering, LLC is a Professional Engineering firm registered with the Texas Board of Professional Engineers and Land Surveyors (Firm # 13748, exp. 09-30-2026) and is thereby exempt from competitive bidding per the requirement of Texas LGC 2254 and the Grimes County *Order Adopting Policy and Procedure for the Selection of Architecture, Professional Engineering, and Land Surveying Services* approved June 20th, 2024 by the Grimes County Commissioners Court.

5engineering, LLC is the most highly qualified provider of engineering services for the subject project based on demonstrated competence and qualifications and any resulting contract will be negotiated at a fair and reasonable price (LGC 2254.004).

Please contact the Grimes County Engineer with any questions.

Jonathan Steiber, P.E.
Grimes County Engineer
936-873-4436
jonathan.steiber@grimescountytexas.gov

**AN ORDER ESTABLISHING THE TAX RATE FOR GRIMES COUNTY
FOR TAX YEAR 2026**

WHEREAS, the Commissioners Court of Grimes County has published a notice of the proposed property tax rate for the 2026 tax year and conducted any required public hearings concerning the proposed property tax rate, and

Whereas, Chapter 26 of the Property Tax Code requires the Commissioners Court of Grimes County to adopt a tax rate, therefore;

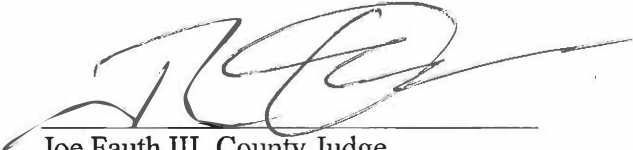
Be it ordered by the Commissioners Court of Grimes County that:

(1) We, the Commissioners Court of Grimes County, do hereby adopt the tax rate per \$100 taxable valuation for Grimes County for tax year 2026 as follows:

\$0.395000	for the purposes of maintenance and operations
\$0.000000	for the payment of debt service
\$0.395000	total tax rate

(2) We, the Commissioners Court of Grimes County, do hereby authorize the tax assessor-collector for Grimes County to assess and collect taxes for tax year 2026 employing the above tax rate.

ADOPTED by the Commissioners Court on this the 16th day of September 2026.


Joe Fauth III, County Judge

Aye

Nay

☒

☐


Chad Mallett, Commissioner Pct. 1

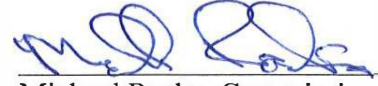
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David Tullos, Commissioner Pct. 2

☒

☐


Michael Raska, Commissioner Pct. 3

☒

☐


Phillip Cox, Commissioner Pct. 4

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☐

ATTEST:


Barbara Kimich, County Clerk
Grimes County, Texas